

Introduction to Professional Practices in IT

CS4001 – Professional Practices in IT

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Equality, Diversity & Inclusion

WHAT IS DISCRIMINATION?

- Discrimination means treating one person or one group of people less favorably than another on the grounds of personal characteristics.
- Discrimination can be direct or indirect.

Direct discrimination

- Direct discrimination occurs when one person is treated less favorably than another specifically because of their sex or race, and so on.

Examples:

- A woman does the same job as a man but is paid less than he is.
- A doctor refuses to treat a Chinese patient on the grounds that he has no room for any more patients but then accepts an English patient.
- A company advertises for a secretary and automatically rejects all the male applicants.
- A company advertises for 'a mature woman to act as the Chief Executive's personal assistant' or 'a strong young man to work as a trainee zoo-keeper'.

Indirect discrimination

- Indirect discrimination occurs when an employer imposes conditions that apply to all employees or applicants but disproportionately affect one group.

Examples:

- Advertising a job with the requirement that applicants must be at least 180 cm tall. In the UK, there are many men over 180 cm tall but very few women. The result is that few women can apply for the job.
- When allocating public housing, a local authority has a policy of giving priority to the children of existing tenants.
- An employer insisting that all employees work on Saturdays. This might be held to be indirect discrimination against those who practice Judaism, since Saturday is their Sabbath. This would be discrimination on grounds of religion but, since the practitioners of Judaism are overwhelmingly of the Jewish race, it might also be regarded as racial discrimination.
- It can be justified if the employer demonstrates that there is a genuine occupational requirement that the offending condition be satisfied.

Discrimination Grounds

- In Europe, the USA, and many other countries prohibit discrimination on grounds such as:
- Sex, Gender;
- Race, Color, Ethnic Origin, or Nationality;
- Disability;
- Sexual orientation;
- Religion;
- Age.

DISCRIMINATION ON GROUNDS OF Gender

- Formally women got low salaries and men got extra allowances and more if they are married
- Women after having kids were not allowed to rejoin
- It was very difficult for women to gain entry to academic and professional courses in fields such as medicine or the law that would have qualified them for senior positions.

Act of Parliament

In UK, this situation was dramatically changed by two Acts of Parliament:

- The Equal Pay Act of 1970 and
- The Sex Discrimination Act of 1975.

The most important features of the law as it stands can be summarized as follows:

- Regarding Employment
- Regarding Education
- Regarding Provision of services

Act of Parliament Regarding Employment

- It is unlawful for an employer to discriminate against a person on grounds of their sex or marital status in terms of the arrangements made for recruitment and selection and the terms on which employment is offered.
- It is unlawful for an employer to discriminate against an employee on grounds of their sex or marital status regarding opportunities for promotion, transfer, or training or to any other benefits.
- It is unlawful for an employer to discriminate against an employee on grounds of their sex or marital status regarding dismissal or redundancy.
- It is unlawful for an employer to victimize an employee for bringing a complaint of sex discrimination or for giving evidence in support of another employee's complaint.

Act of Parliament Regarding Education

- It is unlawful for a provider of education (public or private, school, college or university) to discriminate against a person based on their sex, in offering admission to the establishment or to specific courses, and in providing access to the other benefits and facilities it offers.
- The main exceptions to this are that allowance is made for single-sex establishments and that provision for physical education may be different for the two sexes.

DISCRIMINATION ON RACIAL GROUNDS

- The present law is based on the Race Relations Act 1976 and subsequent amendments to it.
- It makes it unlawful to discriminate on grounds of race, color, ethnic origin or nationality.
- It introduced the idea of indirect discrimination based on race. It established the Commission for Racial Equality by the merger of the Race Relations Board and the Community Relations Commission.

(CRE) was a non-departmental public body in the United Kingdom that aimed to address racial discrimination and promote racial equality. It was disbanded in 2007.

DISCRIMINATION ON GROUNDS OF DISABILITY

From the 1970s onwards, the government had been encouraging the recruitment of disabled employees into the Civil Service and encouraging employers to take on disabled workers by withholding government contracts from companies that could not demonstrate a commitment to offering opportunities to the disabled.

Disability Discrimination Act 1995

The Act makes it unlawful to treat a disabled employee or applicant less favorably because of their disability without justification.

The justification must be serious and substantial. Thus, it would be justified to reject a blind applicant for a job as a bus driver or a paraplegic for a job as a lifeguard.

DISCRIMINATION ON GROUNDS OF RELIGION OR BELIEF, OR SEXUAL ORIENTATION

As regards discrimination on grounds of sexual orientation and religious belief, that the EU directive is implemented in the UK by the **Employment Equality (Sexual Orientation) Regulations 2003** and the **Employment Equality (Religion or Belief) Regulations 2003**, both of which came into effect in December 2003. These regulations follow the pattern established by the Sexual Discrimination Act 1975 and the Race Relations Act 1976.

DISCRIMINATION ON GROUNDS OF AGE

- Special treatment of different age groups to protect them (e.g., not allowing children under a certain age to be employed);
- Different premiums for life insurance policies, depending on the age of the person at the time the policy is taken out, and different pension rates depending on the age of retirement (but these must not amount to sex discrimination);
- Fixing a maximum age for recruitment based on the need for a reasonable period of employment after training and before retirement;
- Fixing a minimum age, a minimum amount of professional experience or a minimum number of years with the company before a person will be regarded as eligible for a given post or eligible for certain employment benefits (e.g., additional annual leave).

AVOIDING DISCRIMINATION

Effective compliance with anti-discrimination legislation in the workplace requires three things:

- a suitable written policy, well-publicized, and freely and easily available;
- a training program for new and existing staff, to ensure that they are all aware of the policy and its importance;
- effective procedures for implementing the policy.